

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 14-10**

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**ECONOCARIBE CONSOLIDATORS, INC.**

**COMPLAINANT**

**v.**

**AMOY INTERNATIONAL, LLC.**

**RESPONDENT**

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**COMPLAINANT'S REPLY TO RESPONDENT'S OPPOSITION TO MOTION FOR  
PARTIAL SUMMARY JUDGMENT**

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**DECLARATION OF JOHN KAMADA**

I, John Kamada, under penalty of perjury, declare as follows:

1. I am over 18 years of age and am competent to make this declaration.
2. I am the Manager of the Los Angeles Office of Econocaribe Consolidators, Inc. ("Econocaribe") and am in charge of its business in California. I am the Custodian of Records related to this subject shipment. If called as a witness, I could and would competently testify to the following of my own personal knowledge in a court of law.
3. Econocaribe is a corporation organized under the laws of the State of Florida and authorized to do business in the States of Florida and California.

4. On May 20, 2013 Amoy contracted with Econocaribe for the shipment of 4 containers allegedly containing 100 packages of "Auto Parts (New)" from Oakland, CA to Xingang, China.
5. Econocaribe in turn contracted with Maersk Line ("Maersk") for the shipment via the vessel "CMA CGM VIVALDI," and in accordance with Amoy's instructions made Victory Maritime Service ("Victory China") at destination the consignee. Maersk took possession of the containers along with other related paperwork on or about May 29, 2013 for purposes of shipment to China.
6. In fact, the cargo was baled used truck tires, which Econocaribe discovered after the cargo arrived in China and was inspected by Chinese Customs.
7. Econocaribe's Terms and Conditions were included into said contract. The Bill of Lading states "transportation pursuant to this Bill of Lading is subject to conditions set forth in Econocaribe published tariff."
8. Econocaribe's Tariff is filed with the Commission and available on Econocaribe's website. The said Tariff fully incorporates Econocaribe's Terms and Conditions that is identical to the one issued to Amoy. *See Econocaribe's Reply Exhibit 1.*
9. Amoy notified Econocaribe that the cargo arrived in China on June 17, 2013. Subsequently, Chinese Customs opened the containers for inspection, and found that the contents were in fact goods prohibited entry into China, i.e. baled used truck tires. It seized the four containers from Maersk Line, the importing carrier, and Maersk's notification of this fact then went to Econocaribe and Amoy.
10. On or about May 18, 2014, I had a phone conversation with Melissa Chen, the owner of Amoy. In the conversation, Melissa stated that this was not the first time that Amoy had shipped used tires by providing false information to other NVOCCs;

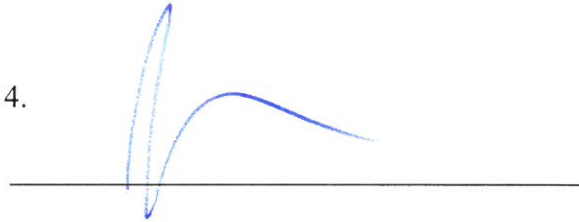
that the previous misdeclaration was also done by the same employee, Krystal Lee; that as a result of Krystal Lee's misconduct, Amoy had reimbursed other NVOCCs for damages Amoy caused; that Krystal Lee did this and the previous misdeclaration willfully, in fact, that Krystal Lee colluded with the shipper of the cargo; that Krystal Lee was terminated because of this misconduct.

11. On July 9, 2013 Maersk informed Econocaribe that the consignee Victory China denied interest in the cargo, and that Econocaribe need to advise Amoy to nominate another shipper for the return bill of lading. Econocaribe immediately forwarded this information to Amoy.
12. On or about June 30, 2014, Maersk notified Econocaribe that Chinese Customs released the four containers upon condition that they be shipped back to their country of origin.
13. Econocaribe entered into agreement with Maersk to ship the four containers back to the U.S.
14. Amoy has never nominated either a shipper or consignee for the return of the cargo, leaving Econocaribe without instructions on where or to whom to repatriate the cargo.
15. Further, Amoy has steadfastly refused to provide payment for the Chinese storage, demurrage, return freight charges or destruction costs.
16. All the emails cited in Econocaribe's Motion for Partial Summary Judgment and Reply to Amoy's Opposition are business records kept in the ordinary course of the regularly conducted activity of Econocaribe. I am the custodian of these records and I will testify that these emails are business records.

17. The matters set forth in this Declaration are true and correct, and they are based on my personal knowledge and review of my records associated with this case.
18. I declare under penalty of perjury of the laws of the United States of America that the foregoing is true and correct.

**FURTHER AFFIANT SAYETH NAUGHT.**

Executed on this 26<sup>th</sup> day of January 26, 2014.

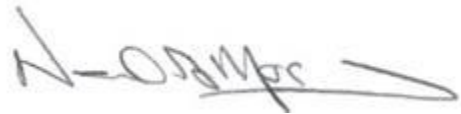


John Kamada

**CERTIFICATE OF SERVICE**

I hereby certify that a copy of the foregoing **COMPLAINANT'S REPLY TO RESPONDENT'S OPPOSITION TO MOTION FOR PARTIAL SUMMARY JUDGMENT - DECLARATION OF JOHN KAMADA** was sent to the below-mentioned counsel via email on January 26, 2015.

Joseph N. Mirkovich, Esq.  
RUSSELL MIRKOVICH & MORROW  
Email: [jmirkovich@rumlaw.com](mailto:jmirkovich@rumlaw.com)  
Attorneys for Respondent  
AMOY INTERNATIONAL LLC.

A handwritten signature in dark ink, appearing to read "N. Mooney", with a long horizontal stroke extending to the right.

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**Neil B. Mooney, Esq.**